Newport Mall

MEGAWORLD
Lifestyle Malls

May 14, 2024

MR. ADRIAN PECKSON DIMACALI
HR Manger and Legal Counsel
MARY GRACE FOODS INC.
(for **CAFÉ MARY GRACE**)

RENEWAL OF CONTRACT OF LEASE

Dear Mr. Dimacali:

Reference is made to the Contract of Lease ("Contract") between **Travellers International Hotel Group, Inc.** ("LESSOR") and **CAFÉ MARY GRACE** ("LESSEE") relating to the lease of the premises located at **Unit B1A, Second Floor, Newport Mall**, with an area of **261.00** square meters. Unless otherwise defined, capitalized terms used herein shall have the same meanings ascribed to them under the Agreement.

We are glad to renew the lease under the same terms and conditions stated in the Contract, subject however to the following amendments and the LESSEE's continued compliance with its obligations under the Contract and this renewal letter:

Monthly Rent	-Exclusive of CUSA -Exclusive of VAT, and other utilities
Contracted Rate	**Php 1,767.43/sqm./mo. OR** **Php 1,359.56/sqm./mo. + 5% of gross sales** (whichever is higher)
Security Deposit	Given the rate, required Security Deposit now amounts to **P2,767,795.38** as Megaworld Corporation's standard deposit requirement is six (6) months deposit. Your current Security Deposit paid (if any) will be deducted from the required amount.
CUSA (Common Area Charges)	Php 180.00/sqm./mo. (Exclusive of VAT)
Marketing Dues	Php 40,000.00 per annum
Electrical Charges	Based on the actual consumption;
Aircon Charges	Chilled water; charges to be computed based on actual Aircon capacity (in tons)
Renewal Term	**November 01, 2024 to October 31, 2025**
Rental Commencement	November 01, 2024
	OTHERS
Updated Government Permits & Licenses	Submission of renewed permits and licenses of follows: -Business Permit, Signage Permit, Sanitary Permit
Government Registration & Corporate Papers (if there are changes made after the initial submission)	-SEC Registration -Articles of Incorporation -DTI Registration -Secretary's Certificate (stating officers authorized to negotiate, enter into and sign for and on behalf of the Corporation for all Lease Contracts, Award Notices, and other pertinent documents pertaining to the lease of properties/space by the corporation)

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Safety and Audit Inspection	A safety and audit inspection shall be conducted by our Property Administrators to ensure that the retail partner complies with all the safety requirements of the mall.
Insurances	-Comprehensive General Liability Insurance (CGLI) coverage amount should not be less than P500,000.00 -Fire Insurance
Notice	Article 13.3 of the Contract is hereby amended and shall be read as follows: *"Where demand or notice is required to be given under this Contract, notice sent to the LESSEE at the Leased Premises or the address of the LESSEE by registered mail, private courier or by personal delivery or via email shall be considered sufficient compliance with the requirement of notice or demand. The LESSEE warrants that the address/es and email address/es it provides to the LESSOR are current, and undertakes to notify the LESSOR in case of changes thereof. Unless the LESSOR is notified of any change in address, the LESSEE agrees that all demands or notices sent to the registered address and email address of the LESSSEE are deemed valid and effective."*

All other terms and conditions in the Contract that are not inconsistent with or modified by the above renewal terms shall remain valid and binding on the Parties.

Please return to us the signed copy of this letter not later than **May 24, 2024**. If we do not receive any reply or feedback from the LESSEE by the said date, we shall consider the renewal terms and conditions stated above as having been ACCEPTED and AGREED upon by the LESSEE and expressing all of the terms and conditions agreed between the Parties with respect to the renewal of the Contract. This letter, when signed or deemed accepted by the LESSEE shall constitute an amendment and supplement to the Contract, and shall form integral part thereof.

If you need to clarify anything regarding the above, please do not hesitate to contact the undersigned at telephone number 8550-2981 or email at ccsanchez@megaworld-lifestyle.com.

Sincerely yours,

CHRISTINE C. SANCHEZ
Senior Leasing Manager
Megaworld Commercial Division

Noted by:

ENGR. JEFFREY A. MANLAPAZ
Deputy General Manager
Megaworld Commercial Division

Agreed and accepted:

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MR. ADRIAN PECKSON DIMACALI
HR Manager and Legal Counsel
MARY GRACE FOODS INC.
Date: _____

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